NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIA Act s73J

S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
Division 2—Registered NDIS providers **73J Registered NDIS providers must comply with conditions of registration** A person contravenes this section if the person: a) is a registered NDIS provider; and b) breaches a condition to which the egistration of the person is subject Civil penalty: 250 penalty units **73F Registration is subject to conditions** (2) The registration of a person as a registered NDIS provider is subject to the following conditions: … (c) a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;	Schedule 8 **4 Complaints management and resolution** (1) Each participant has knowledge of and access to the provider's complaints management and resolution system. (2) Complaints are welcomed, acknowledged, respected and well-managed. … **6 Human resource management** Each participant's support needs are met by workers who are competent in relation to their role, hold relevant qualifications and have relevant expertise and experience to provide person-centred support.	Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

1412

T75

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
		Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint [redacted] "I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."	Att 14 (D22/169610) – Summary of Complaints
		Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) [redacted] This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32).	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
			As at 14 October 2022 there is no record of a “Sally See” in the worker screening or contact information held by the Commission.	

1414

T75[3]

NDIS Quality and Safeguards Commission

Evidence Matrix
Breach of NDIS Act s73B
Forward Focus Group Pty Ltd

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
73B Requirement to be a registered NDIS provider (1) The National Disability Insurance Scheme rules may require that specified classes of supports provided under participants' plans are to be provided only by persons who are registered under section 73E to provide those classes of supports. Note: See also subsection 33(6), which provides that, if the funding for supports under a plan is managed by the Agency, supports are to be provided only by a registered NDIS provider. (2) A person must not provide a support under a participant's plan if: (a) the National Disability Insurance Scheme rules require the person to be registered to provide the support under the plan; and (b) the person is not so registered. Civil penalty: 250 penalty units.	Rules require registration	***National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*** **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)
	Person is not so registered	Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

1415

T76.1

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
	Services offered	• The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33). • Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA

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T76.2